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Position paper

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CELE's submission in response to the targeted consultation: draft guidelines on trusted flaggers under the Digital Services Act (DSA)

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Introduction

The Center for Studies on Freedom of Expression (CELE) is an academic research center affiliated with Universidad de Palermo in Argentina. The Center provides technical and legal analysis on issues affecting this fundamental right and has been studying freedom of expression on the Internet as a specific research area since 2012. The Center is a leading voice in promoting and protecting freedom of expression nationally, regionally, and internationally.

CELE has closely followed the drafting process of the Digital Services Act from its outset and, since 2024, has had a dedicated research area focused on its study. Moreover, CELE is a member of the DSA Civil Society Coordination Group, led by the Center of Democracy and Technology, and of the DSA International Human Rights Alliance, led by the Electronic Frontier Foundation and AccessNow.

This submission has been prepared in response to the Targeted consultation on the draft guidelines on trusted flaggers under the Digital Services Act (DSA). We welcome the opportunity to contribute to this consultation with an assessment that emphasizes freedom of expression and privacy.

The draft guidelines

The *Draft Commission Guidelines on the trusted flagger mechanism under Article 22 of Regulation (EU) 2022/2065* (hereinafter "the Guidelines" or "the Draft Guidelines") have been drafted with two objectives: first, to provide assist providers of online platforms and

Digital Services Coordinators in the application of Paragraphs 2, 6 and 7 Articles 22(2), 22(6) and 22 (7) of the DSA, as mandated by Article 22(8) of the DSA.[1] Additionally, the Guidelines provide interpretive orientation for platforms, trusted flaggers and DSCs regarding their obligations under Paragraphs 1, 3 and 4 of Article 22 of the DSA.[2]

Article 22 (8) of the DSA empowers the Commission to issue guidelines, where necessary, for the first of these two goals. Article 22 (2) sets out the criteria for a Digital Service Coordinator to grant an entity the status of Trusted Flagger. Article 22(6) regulates the investigation process in case a DSC receives reports that a trusted flagger issues a significant number of insufficiently precise, inaccurate, or inadequately substantiated notices. Article 22 (7) deals with the revocation of the trusted flagger status. Please note that, where paragraph 21 of the Guidelines says "laid down in paragraphs 1, 3 and 4 of Regulation (EU) 2022/2065", it should say "laid down in paragraphs 1, 3 and 4 ***of Article 22*** of Regulation (EU) 2022/2065".

The Draft Guidelines are clear about their non-binding nature. They do, however, invite DSCs to adopt them voluntarily in the implementation of Article 22 of the DSA[3] and they encourage DSCs to review any previous trusted flagger appointments in light of the Guidelines' own interpretation of Article 22(2).[4] They are also clear about the fact that the only authoritative interpretation of the DSA belongs to the CJEU. However, they purport to provide interpretive guidance on Article 22 (1), 22 (3) and 22 (4). Moreover, since the Commission's authority to issue guidelines in connection with Articles 22(1), 22(3) and 22(4) does not stem from the DSA itself [5], the final version of the guidelines remains a good opportunity to clarify the source of the Commission's such authority.

[1] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 20
[2] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 21
[3] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 17
[4] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 22
[5] See Digital Services Act, Article 22(8)

Trusted flaggers and systemic risks

While Article 35(1)(g) indicates that "initiating or adjusting collaboration with trusted flaggers" can work as a risk mitigation measure, the Guidelines correctly establish that compliance with it by platforms does not amount to compliance with their obligations under Section 5 of Chapter III of the DSA ("Additional obligations for providers of very large online platforms and of very large online search engines to manage systemic risks").[6]

The Guidelines state that the activity of trusted flaggers can be useful to identify changing trends in the spread of illegal content, gaps in content moderation processes and systemic risks.[7] While we believe this to be true, we would advise proceeding cautiously and always analyzing and interpreting the data coming from trusted flaggers' reports within the bigger information ecosystem created by the DSA, such as transparency reports, risk reports, audit reports, civil society engagement, and academic scholarship.

Given that trusted flaggers act within a specific designated area of expertise, they will only capture a small fraction of the illegal content that circulates online. Also, the fact that they may not be reporting a certain type of illegal content, even when it overlaps with their area of expertise, does not necessarily mean that it does not exist, but could mean that they are failing to detect it, or prioritizing the allocation of their limited resources in reporting other kinds of illegal content. Similarly, when it comes to tracking the evolution of systemic risks not related to illegal content, or not related to content at all (such as risks stemming from platforms' design), the information provided by trusted flaggers might not be the best source.

The expertise of trusted flaggers is fragmented by design. Each has thematic expertise in a few issues, one or two languages, and their legal expertise is usually limited to either the union, one local jurisdiction, or both. The Court of Justice of the European Union has interpreted "systemic" under Articles 34 and 35 of the DSA as "risks to society as a whole in

[6] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 14
[7] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 13

so far as they could affect a significant part of the population of the European Union".[8] Therefore, given their fragmented nature, studying the reports of trusted flaggers with legal expertise only in one national jurisdiction might generate conclusions that, although valuable, may only be relevant in connection with local tendencies on risks that fall short of "systemic".

Elegibility

Paragraph 20 of the Guidelines interprets Article 22 (2) of the DSA as requiring DSCs to award, upon application, the status of trusted flagger to any entities that comply with the conditions laid out in the law.[9] We believe this to be a valid interpretation of the text of Article 22.[10] However, there is some tension between such interpretation and Recital 61 of the DSA, which warns against too many designations diluting the effectiveness of the tool: "[t]o avoid diminishing the added value of such mechanism, the overall number of trusted flaggers awarded in accordance with this Regulation should be limited".[11] The Guidelines acknowledge this tension and state that, for keeping a cap on the number of trusted flaggers, DSCs should "apply high standards" when reviewing whether an applicant complies with Article 22(2).[12] Moreover, the broad interpretation of Article 22 (2) sustained in Paragraph 20 of the Guidelines is further put to question by Paragraphs 28, 33 and 55, which state that DSCs ought to assess applications on a case-by-case basis.[13]

The (soft) limit on the number of certified flaggers of Recital 61 obliges DSCs to choose between competing applicants. The draft version of these Guidelines contains little

[8] See Court of Justice of the European Union, Judgement of the General Court (Seventh Chamber, Extended Composition), in Case T-367/23 Amazon v. European Union, November 19 2025, par. 70. Also see Andrea Palumbo, What makes a risk "systemic"? The CJEU's first interpretation of systemic risks under the Digital Services Act, DSA Observatory, May 6, 2026, https://dsa-observatory.eu/2026/05/06/what-makes-a-risk-systemic-the-cjeus-first-interpretation-of-systemic-risks-under-the-digital-services-act/

[9] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 20.

[10] Digital Services Act, Article 22.

[11] Digital Services Act, Recital 61.

[12] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 58.

[13] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraphs 28, 33 and 55.

guidance as to how to avoid cherry-picking between applicants seeking certification for the same subject matter. The likelihood of governments certifying only politically aligned applicants as trusted flaggers on certain contested topics, or of certifying trusted flaggers only in relation to subject matters that remain dear to their political sensibilities, is not negligible.

We celebrate the recommendations that DSCs and authorities in charge of enforcing Article 22 of the DSA or that can issue orders to act against illegal content ought not to be designated as trusted flaggers.[14] However, it is our position that no state actor, especially law enforcement agencies, should be appointed as a trusted flagger. We share the view that "law enforcement notifications made as Trusted Flaggers would be tantamount to an order to remove the content given the significant legal risk services would face in failing to act and therefore are ripe for potential abuse".[15] When a platform removes content following such a flag, it may in practice function as a proxy for state action—achieving indirectly what the authority itself might be constitutionally prohibited from doing directly.

We also welcome the recommendation that no conflict of interest must exist between DSCs and applicants that can influence the designation decision.[16] To effectively become a safeguard against potential abuse of the mechanism, trusted flaggers ought to remain independent not only from platforms but also from DSCs and any other state actor. This would include both taking into account potential conflicts of interest that may arise after designation as well as applying the criteria laid out in paragraphs 36 to 39 of the Draft Guidelines also to the relations between trusted flaggers and member states. While the recommendation in Paragraph 42(a) that applicant entities must have a high degree of freedom from political influence is a much welcome step forward, the current text remains somewhat tautological: it states that to verify an applicant's "objectivity," the DSC must seek

[14] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraphs 30 and 31.
[15] Asha Allen, A Series on the EU Digital Services Act: Tackling Illegal Content Online, Center for Democracy and Technology, August 2022, https://cdt.org/insights/a-series-on-the-eu-digital-services-act-tackling-illegal-content-online/
[16] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 30.

additional evidence and safeguards that its management, funding or other support does not interfere with its "objective decision-making". It fails to provide a more concrete standard with clear criteria that DSCs can apply to assess their independence.

The Guidelines make it explicit that the Commission considers that "private entities that do not represent collective interests, such as intellectual property rightsholders", are eligible as trusted flaggers.[17] This seems to be a departure from Recital 61 of the DSA, which encourages industry associations representing their members' interests to apply for trusted flagger status, while mentioning the possibility of "private entities or individuals" to enter into private agreements with providers of online platforms.

By expanding eligibility to encompass individual IP rightsholders, the Draft Guidelines create the conditions for the legal departments of individual companies to flood the trusted flaggers channels with IP infringement claims. It also cuts against the DSA's and these Guidelines' recommendation of keeping the number of trusted flaggers limited.[18] In practice, alerts issued by these corporate actors will compete with non-commercial reports submitted by civil society organizations acting as trusted flaggers in the public interest, and will be prioritized over ordinary Article 16 reports. At least, paragraph 59 of the Guidelines should contain stronger recommendations to avoid such a scenario, which is far from hypothetical: out of the 78 trusted flaggers designated as of July 9, 2026, around one third (24) have "intellectual property infringements" as their certified expertise.[19]

This expansion risks shifting the trusted flagger framework from a system of collective expertise in content moderation for the public interest into a fast-tracked mechanism for private enforcement of IP claims. Moreover, this departure from the spirit of Recital 61 conflicts with one of the primary objectives of the Guidelines: respecting the fundamental

[17] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 32.
[18] Digital Services Act, Recital 61. Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 58.
[19] See European Commission, Trusted flaggers under the Digital Services Act (DSA), https://digital-strategy.ec.europa.eu/en/policies/trusted-flaggers-under-dsa

rights of the recipients of the service, including freedom of expression and information[20], for it incentivizes a high volume of flags driven by the commercial interest of private parties, drawing resources and attention from flags in the public interest and ultimately incentivizing a kind of censorship by proxy that affects otherwise legal discourse as a collateral damage of the protection of property rights. Paragraph 32(b) of the Guidelines, meant to function as a safeguard against corporate capture of the trusted flaggers mechanism by commercial interests, should be more specific about the "higher degree of scrutiny" required for this kind of designation.

Appointment procedure

The Commission's recommendation to minimize administrative burdens and keep the application process "not too complex"[21] grants considerable discretion to individual DSCs and risks lowering the bar for admitting applicants. While we are aware that unnecessary bureaucracy could be used to block certain applicants, the central role of trusted flaggers in the DSA ecosystem demands a rigorous vetting process, which could also be incompatible with the recommendation of assessing the applications swiftly.[22]

This lenient approach directly conflicts with DSA Recital 61, which explicitly states that the number of trusted flaggers should remain limited to ensure the integrity of the framework. Giving national authorities too much flexibility to simplify the process risks opening the floodgates to an unmanageable number of designated entities, undermining the exceptional and high-standard nature that the trusted flagger status is supposed to have.

Indefinite designations

An additional recommendation for DSCs is to designate trusted flaggers for an indefinite period. We acknowledge that it provides stability for entities that need to seek specific funding and plan accordingly, and insulates them from potential undue political

[20] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 6.
[21] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 54.
[22] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 57.

interference. However, by making designations permanent, the burden shifts entirely onto providers of online platforms and the DSCs to initiate a procedure under Articles 22(6) or (7) of the DSA if an entity no longer complies with the Article 22(2) requirements.

Given that DSA Recital 61 mandates a limited number of trusted flaggers, this scarce status should not be awarded permanently to the first entity that happened to comply with the requirements in Article 22(2) of the DSA. To balance these interests, the Guidelines should reject total inertia and instead introduce a simplified, periodic review mechanism, forcing designated flaggers to proactively demonstrate they still meet the criteria to maintain their status. For instance, *Coimisiún na Meán*, the Irish DSC, awards trusted flagger status for a period of three years. Upon expiration of such period, "the Trusted Flagger status will be reviewed and, where appropriate, the status will be re-granted".[23]

Cross-border risks to freedom of expression

The measure proposed in Paragraph 78(d), allowing trusted flaggers to indicate in their reports that a specific piece of content is illegal in multiple specific member states, could create severe risks for freedom of expression.

Article 22(2) of the DSA mandates designations to be made by the DSC of the Member State in which the applicant is established. We acknowledge that under Article 22 of the DSA, an entity's expertise is thematic rather than strictly territorial[24], and a trusted flagger established in one Member State may possess multi-jurisdictional competence, i.e., the specific legal expertise to diligently determine that a piece of content is likely against the laws of more than one Member State. However, that is probably not the case for most trusted flaggers in subject matters where local legislation differs from State to State. Trusted flaggers' duty is to identify and report illegal content, so a profound knowledge of the law is key to their work.

[23] See Coimisiún na Meán, Trusted Flaggers - Frequently Asked Questions, https://www.cnam.ie/app/uploads/2025/01/TF-FAQ_V-Final.pdf

[24] See also Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 82.

To maximize the effectiveness of the trusted flagger mechanism, it would be beneficial for the Guidelines to provide further guidance on how national DSCs should evaluate applicants' competence. Currently, the Draft Guidelines do not fully specify the criteria for national authorities to assess an applicant's expertise across different legal frameworks of other Member States. We believe there is room under Article 22 (8) to allow for that without contradicting Article 22 (2). Accordingly, Annex I, Section 2, should include the possibility for applicant entities to state the territorial scope of their own legal expertise along with the language and the category of illegal content for which they seek trusted flagger status.[25]

While cross-border cooperation is a core strength of the DSA, allowing a single national designation to automatically grant cross-border flagging prerogatives across all 27 legal systems could inadvertently –and likely– lead to legal errors, which could bring unjustified restrictions on expression as a consequence. Without specific safeguards, there is a risk that a trusted flagger certified in one Member State might issue notices in connection with jurisdictions where it lacks the necessary local legal expertise to accurately assess their legality. This asymmetry could allow the more restrictive freedom of expression standards of one jurisdiction to inadvertently control content availability across other Member States.

To ensure legal certainty, protect online expression, and maintain consistency with Paragraph 81, which helpfully addresses the activity of trusted flaggers acting outside of their specific area of expertise, we encourage the Commission to clarify this section. Specifically, the Guidelines could recommend that cross-border flagging capabilities be explicitly conditioned on verifiable proof of legal expertise in different jurisdictions, outside of which trusted flaggers can still issue notices, but always under the standard Article 16 notice-and-action mechanism, for they would be acting outside of their area of expertise.

[25] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), Annex II, Section 2, page 34 and 35.

Processing of notices

While Paragraph 83 of the Guidelines rightly emphasizes that the priority awarded to trusted flagger notices must not preempt a diligent assessment of whether the notified piece of content is illegal, the framework proposed places a high burden on platforms, which could end up endangering the users' right to freedom of expression. By demanding that platforms make expedited, swift decisions on the legality of pieces of content across multiple jurisdictions, the DSA and the Guidelines effectively compel private providers of platforms to exercise quasi-judicial authority to assess the illegality of content themselves, a task they are ill-qualified to perform, usually without appropriate context, especially without hearing the parties involved, and under the additional time constraints imposed.[26]

Furthermore, according to the Draft Guidelines, the Commission "considers that even if the notice of a trusted flagger is based on the legal framework of one or more specific Member States, the diligent assessment of the notice may allow providers of online platforms to identify the illegality of the relevant content also in other Member States without a detailed legal examination"[27]. The suggestion that an assessment under one Member State's law can be easily extrapolated so as to infer illegality in other Member States without a careful legal examination poses a severe threat to freedom of expression. Domestic legal frameworks concerning expression vary significantly across the Union. Encouraging platforms to export legal assessments across borders without thorough legal scrutiny, while simultaneously requiring them to decide without undue delay, creates incentives for precautionary over-removal.[28] To protect the users' rights to seek, receive and impart information, the Guidelines should clarify that the trusted flagger status of an entity should not nudge

[26] Del Campo, González Mama, Zara and Álvarez Ugarte, "What we can and cannot expect from the exercise of public functions by private platforms: lessons from content moderation", forthcoming

[27] Draft guidelines on trusted flaggers under the Digital Services Act (DSA), paragraph 84.

[28] On the dynamics of precautionary over-removal under the DSA, see Agustina Del Campo, Nicolás Zara and Ramiro Álvarez Ugarte, Are Risks the New Rights? The Perils of Risk-based Approaches to Speech Regulation, 16 (2025) JIPITEC 238.

platforms into making complex, multi-jurisdictional legal determinations without appropriate context.

Conclusions and recommendations

We welcome the opportunity to provide our feedback in this targeted consultation on the Draft Guidelines on trusted flaggers under the Digital Services Act (DSA). We centered our efforts on providing more depth to the analysis of the implications of the trusted flagger framework for the enjoyment of the right to freedom of expression in the European Union.

Recital 153 of the Digital Services Act states that it must be interpreted in accordance with the fundamental rights enshrined in the Charter, including the freedom of expression and information. These guidelines provide a unique opportunity to do so.

The following key takeaways should inform the discussion on the final version of the Guidelines for trusted flaggers under Article 22 of the DSA:

1. **Contextualize trusted flagger data in risk assessments.** Provide explicit guidance advising platforms and auditors to treat data from trusted flaggers cautiously when assessing systemic risks. The text should emphasize that, due to the fragmented and localized nature of these entities' expertise, their reports must be contextually interpreted alongside broader DSA mechanisms, such as transparency reports and academic scholarship, rather than being treated as absolute indicators of systemic trends.
2. **Establish criteria to prevent political cherry-picking.** Introduce clear, objective standards for case-by-case assessments to guide DSCs when dealing with competing applications for the same subject matter. This is necessary to prevent national authorities from selecting applicants based on their political alignment.
3. **Explicitly exclude state actors and law enforcement.** Implement a strict prohibition against appointing state actors—particularly law enforcement agencies—as trusted flaggers under Article 22. This safeguard is vital to prevent

notifications from functioning as *de facto* mandatory removal orders, which enables censorship by proxy and circumvents constitutional and judicial oversight.

4. **Strengthen independence standards against political influence.** Refine Paragraph 42(a) to provide a more meaningful standard regarding "objectivity." The Guidelines should provide concrete, verifiable criteria that DSCs can apply to ensure an applicant's funding structures and political ties do not interfere with independent decision-making.
5. **Narrow the eligibility of individual commercial rightsholders.** The Guidelines should discourage the direct designation of individual commercial rightsholders in order to preserve the trusted flagger framework as a system of collective expertise in the public interest, preventing the flooding of priority reporting channels with privatized enforcement of commercial disputes.
6. **Prioritize rigorous vetting over procedural speed.** The final text of Paragraphs 54 and 57 should clarify that the goal of minimizing administrative complexity and ensuring swift assessments must not compromise the rigorous vetting process required as a safeguard due to the exceptional nature of trusted flaggers and their potential impact on freedom of expression.
7. **Drop the recommendation to grant trusted flagger status for an indefinite period.** Instead, the Guidelines should recommend a periodic renewal framework, such as the three-year review cycle utilized by Ireland's *Coimisiún na Meán*, which also requires entities to proactively prove they still meet the baseline criteria.
8. **Condition cross-border capabilities on multi-jurisdictional proof of expertise.** Clarify that the technical capability to flag content as illegal across multiple Member States under Paragraph 78 (d) must be explicitly conditioned on verifiable proof of legal and linguistic expertise in each specific target jurisdiction. Concurrently, amend Annex II, Section 2, to require applicants to state the specific territorial and linguistic scope of their legal expertise upon application.

9. **Protect users from decontextualized, cross-border legal assessments by platforms.** Remove the assertion in Paragraph 83 suggesting that platforms ought to easily identify illegality across multiple Member States without detailed legal examination. The Guidelines must clarify that nudging platforms into making swift, complex multi-jurisdictional legal assessments generates incentives for precautionary over-removal of protected expression.

Thank you,



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